

Imran Khan v. State of U.P. — tenant new connection under Clauses 4.2–4.4; indemnity if landlord consent not obtainable

High Court of Judicature at Allahabad · Division Bench · 29 May 2019 · WRIT - C No. - 18756 of 2019 · **Writ disposed; licensee to consider tenant's new-connection application under Clauses 4.2–4.4 and decide within two months.**

HEADNOTE

A tenant's application for a new electricity connection must be processed under Clauses 4.2 to 4.4 of the U.P. Electricity Supply Code, 2005. Where landlord–tenant litigation makes it not possible to obtain the landlord's consent, the licensee may process the application on the tenant furnishing an appropriate indemnity bond. The Court did not grant the connection; it directed the licensee to intimate shortcomings, process the application on completion of formalities, and decide it within two months.

FACTUAL SUMMARY

Imran Khan, a tenant occupying a portion of House No. 24/36, Nai Basti, Cham Cham Gali, Kotwali Ward, Agra, sought an electricity connection in his own name. The distribution licensee appears to have declined to process the application because a landlord's no-objection certificate was not furnished and a dispute with the landlord was alleged. The petitioner denied any such dispute and said the landlady's consent was annexed to the writ petition.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4.4

new connection — tenant — indemnity bond where landlord consent not obtainable

HOLDING

Applications for new connections are to be processed in accordance with Clauses 4.2 to 4.4 of the U.P. Electricity Supply Code, 2005. If litigation between landlord and tenant makes it not possible to obtain the landlord's consent, the electricity authorities may process the application on the tenant furnishing an appropriate indemnity bond. The licensee was directed to consider the petitioner's application under those provisions, inform him of any shortcomings and documents needed, and on completion of formalities process and finally decide the application within two months. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE LANDLADY HAD IN FACT CONSENTED, OR WHETHER A LANDLORD–TENANT DISPUTE EXISTED

The Court recorded competing assertions and did not resolve them. ¶ 1

NOT DECIDED — MERITS OF THE NEW-CONNECTION APPLICATION

The licensee was directed to consider and decide the application in accordance with Clauses 4.2 to 4.4 after completion of formalities; no connection was ordered. ¶ 1